It owes its existence, its name, and its laws (except such laws as are necessarily incident to all corporations merely as such), to the authority which create it. A state does not owe its origin to the government of the United States, in the highest or in any of its branches. It was in existence before it. It derives its authority from the same pure and sacred source as itself: the voluntary and deliberate choice of the people. 2d. A corporation can do no act but what is subject to the revision either of a court of justice, or of some other authority within the government. A state is altogether exempt from the jurisdiction of the courts of the United States, or from any other exterior authority, unless in the special instances where the general government has power derived from the constitution itself. 3d. A corporation is altogether dependent on that government to which it owes its existence. Its charter may be forfeited by abuse: its authority may be annihilated, without abuse, by an act of the legislative body. A state, though subject, in certain specified particulars, to the authority of the government of the United States, is, in every other respect, totally independent upon it. The people of the state created, the people of the state can only change, its constitution. Upon this power, there is no other limitation but that imposed by the constitution of the United States; that it must be of the republican form. I omit minuter distinctions. These are so palpable, that I never can admit that a system of law, calculated for one of these cases, is to be applied, as a matter of course, to the other, without admitting (as I conceive) that the distinct boundaries of law and legislation may be confounded, in a manner that would make courts arbitrary, and, in effect, makers of a new law, instead of being (as certainly they alone ought to be) expositors of an existing one. If still it should be insisted, that though a state cannot be considered upon the same footing as the municipal corporations I have been considering, yet, as relative to the powers of the general government, it must be deemed in some measure dependent; admitting that to be the case (which to be sure is, so far as the necessary execution of the powers of the general government extends), yet, in whatever character this may place a
*449] state, this can only afford a reason for a new law, *calculated to effectuate the powers of the general government in this new case: but it affords no reason whatever for the court admitting a new action to fit a case, to which no old ones apply, when the *application* of law, not the *making* of it, is the sole province of the court.

I have now, I think, established the following particulars. 1st. That the constitution, so far as it respects the judicial authority, can only be carried into effect, by acts of the legislature, appointing courts, and prescribing their methods of proceeding. 2d. That congress has provided no new law in regard to this case, but expressly referred us to the old. 3d. That there are no principles of the old law, to which we must have recourse, that in any manner authorize the present suit, either by precedent or by analogy. The consequence of which, in my opinion, clearly is, that the suit in question cannot be maintained, nor, of course, the motion made upon it be complied with.

From the manner in which I have viewed this subject, so different from that in which it has been contemplated by the attorney-general, it is evident, that I have not had occasion to notice many arguments offered by the attorney-general, which certainly were very proper, as to his extended view